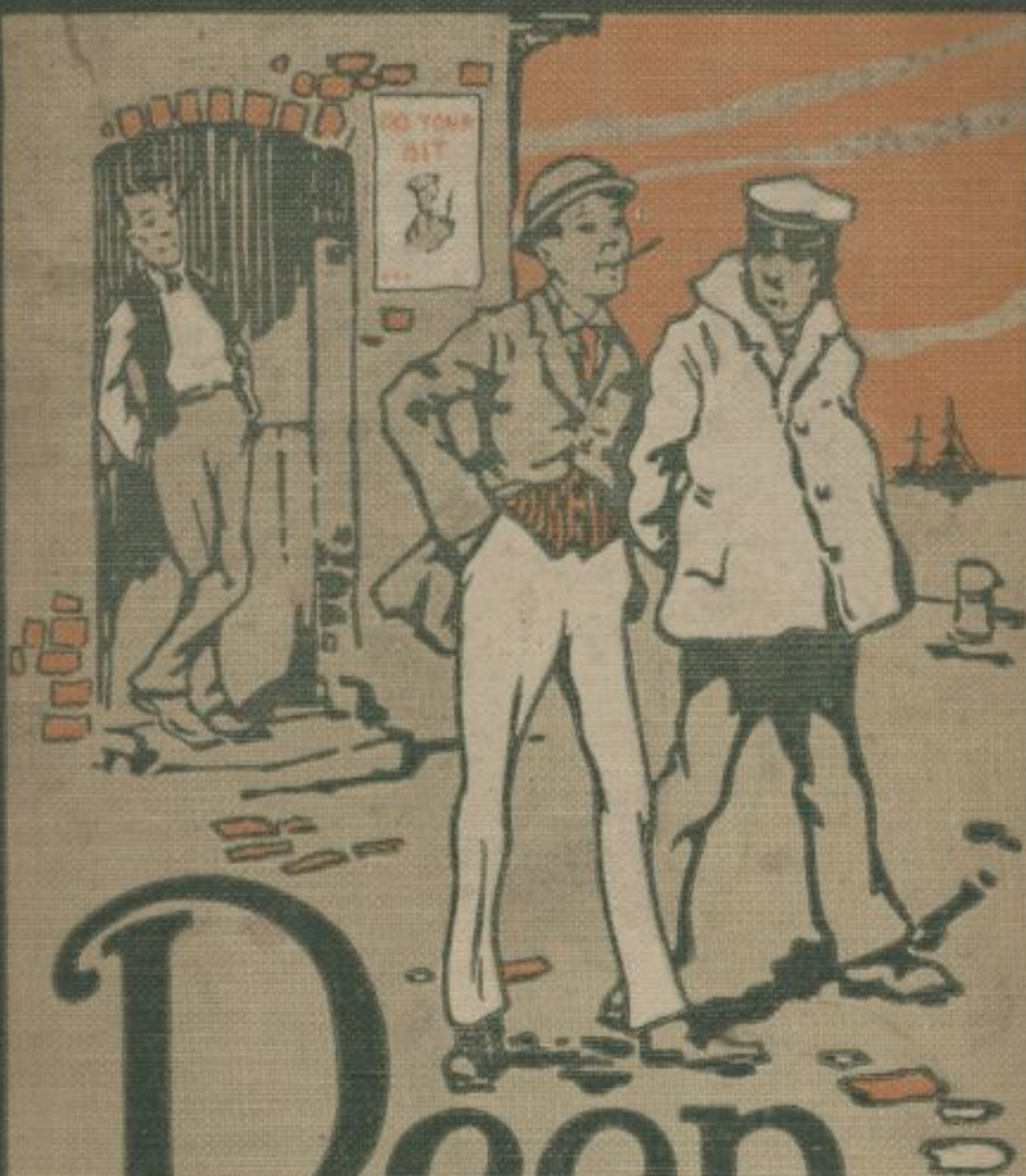


DEEP  
WATERS

JACOBS



Deep  
Waters

W.W. JACOBS

SCRIBNERS

DEEP  
WATERS

JACOBS



SCRIBNERS



# Deep Waters

W.W. JACOBS

## **The Project Gutenberg eBook of Dirty Work**

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at [www.gutenberg.org](http://www.gutenberg.org). If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Dirty Work

Author: W. W. Jacobs

Illustrator: Will Owen

Release date: March 1, 2004 [eBook #11481]

Most recently updated: December 25, 2020

Language: English

Other information and formats: [www.gutenberg.org/ebooks/11481](http://www.gutenberg.org/ebooks/11481)

Credits: Produced by David Widger

\*\*\* START OF THE PROJECT GUTENBERG EBOOK DIRTY WORK \*\*\*

# **DEEP WATERS**

By W.W. JACOBS

# DEEP WATERS



W.W. JACOBS

AUTHOR OF  
'NIGHT WATCHES'  
'THE CASTAWAYS'  
ETC.



# DIRTY WORK

It was nearly high-water, and the night-watchman, who had stepped aboard a lighter lying alongside the wharf to smoke a pipe, sat with half-closed eyes enjoying the summer evening. The bustle of the day was over, the wharves were deserted, and hardly a craft moved on the river. Perfumed clouds of shag, hovering for a time over the lighter, floated lazily towards the Surrey shore.

"There's one thing about my job," said the night-watchman, slowly, "it's done all alone by yourself. There's no foreman a-hollering at you and offering you a penny for your thoughts, and no mates to run into you from behind with a loaded truck and then ask you why you didn't look where you're going to. From six o'clock in the evening to six o'clock next morning I'm my own master."

He rammed down the tobacco with an experienced forefinger and puffed contentedly.

People like you 'ud find it lonely (he continued, after a pause); I did at fust. I used to let people come and sit 'ere with me of an evening talking, but I got tired of it arter a time, and when one chap fell overboard while 'e was showing me 'ow he put his wife's mother in 'er place, I gave it up altogether. There was three foot o' mud in the dock at the time, and arter I 'ad got 'im out, he fainted in my arms.

Arter that I kept myself to myself. Say wot you like, a man's best friend is 'imself. There's nobody else'll do as much for 'im, or let 'im off easier when he makes a mistake. If I felt a bit lonely I used to open the wicket in the gate and sit there watching the road, and p'r'aps pass a word or two with the

policeman. Then something 'appened one night that made me take quite a dislike to it for a time.

I was sitting there with my feet outside, smoking a quiet pipe, when I 'eard a bit of a noise in the distance. Then I 'eard people running and shouts of "Stop, thief!" A man came along round the corner full pelt, and, just as I got up, dashed through the wicket and ran on to the wharf. I was arter 'im like a shot and got up to 'im just in time to see him throw something into the dock. And at the same moment I 'eard the other people run past the gate.

"Wot's up?" I ses, collaring 'im.

"Nothing," he ses, breathing 'ard and struggling. "Let me go."

He was a little wisp of a man, and I shook 'im like a dog shakes a rat. I remembered my own pocket being picked, and I nearly shook the breath out of 'im.

"And now I'm going to give you in charge," I ses, pushing 'im along towards the gate.

"Wot for?" he ses, purtending to be surprised.

"Stealing," I ses.

"You've made a mistake," he ses; "you can search me if you like."

"More use to search the dock," I ses. "I see you throw it in. Now you keep quiet, else you'll get 'urt. If you get five years I shall be all the more pleased."

I don't know 'ow he did it, but 'e did. He seemed to sink away between my legs, and afore I knew wot was 'appening, I was standing upside down with all the blood rushing to my 'ead. As I rolled over he bolted through the wicket, and was off like a flash of lightning.

A couple o' minutes arterwards the people wot I 'ad 'eard run past came back agin. There was a big fat policeman with 'em—a man I'd seen afore on the beat—and, when they 'ad gorn on, he stopped to 'ave a word with me.

"'Ot work," he ses, taking off his 'elmet and wiping his bald 'ead with a large red handkerchief. "I've lost all my puff."

"Been running?" I ses, very perlite.

"Arter a pickpocket," he ses. "He snatched a lady's purse just as she was stepping aboard the French boat with her 'usband. 'Twelve pounds in it in gold, two peppermint lozenges, and a postage stamp."

He shook his 'ead, and put his 'elmet on agin.

"Holding it in her little 'and as usual," he ses. "Asking for trouble, I call it. I believe if a woman 'ad one hand off and only a finger and thumb left on the other, she'd carry 'er purse in it."

He knew a'most as much about wimmen as I do. When 'is fust wife died, she said 'er only wish was that she could take 'im with her, and she made 'im promise her faithful that 'e'd never marry agin. His second wife, arter a long illness, passed away while he was playing hymns on the concertina to her, and 'er mother, arter looking at 'er very hard, went to the doctor and said she wanted an inquest.

He went on talking for a long time, but I was busy doing a bit of 'ead-work and didn't pay much attention to 'im. I was thinking o' twelve pounds, two lozenges, and a postage stamp laying in the mud at the bottom of my dock, and arter a time 'e said 'e see as 'ow I was waiting to get back to my night's rest, and went off—stamping.

I locked the wicket when he 'ad gorn away, and then I went to the edge of the dock and stood looking down at the spot where the purse 'ad been chucked in. The tide was on the ebb, but there was still a foot or two of water atop of the mud. I walked up and down, thinking.

I thought for a long time, and then I made up my mind. If I got the purse and took it to the police-station, the police would share the money out between 'em, and tell me they 'ad given it back to the lady. If I found it and put a notice in the newspaper—which would cost money—very likely a dozen or two ladies would come and see me and say it was theirs. Then if I gave it to the best-looking one and the one it belonged to turned up, there'd

be trouble. My idea was to keep it—for a time—and then if the lady who lost it came to me and asked me for it I would give it to 'er.

Once I had made up my mind to do wot was right I felt quite 'appy, and arter a look up and down, I stepped round to the Bear's Head and 'ad a couple o' goes o' rum to keep the cold out. There was nobody in there but the landlord, and 'e started at once talking about the thief, and 'ow he 'ad run arter him in 'is shirt-sleeves.

"My opinion is," he ses, "that 'e bolted on one of the wharves and 'id 'imself. He disappeared like magic. Was that little gate o' yours open?"

"I was on the wharf," I ses, very cold.

"You might ha' been on the wharf and yet not 'ave seen anybody come on," he ses, nodding.

"Wot d'ye mean?" I ses, very sharp. "Nothing," he ses. "Nothing."

"Are you trying to take my character away?" I ses, fixing 'im with my eye.

"Lo' bless me, no!" he ses, staring at me. "It's no good to me."

He sat down in 'is chair behind the bar and went straight off to sleep with his eyes screwed up as tight as they would go. Then 'e opened his mouth and snored till the glasses shook. I suppose I've been one of the best customers he ever 'ad, and that's the way he treated me. For two pins I'd ha' knocked 'is ugly 'ead off, but arter waking him up very sudden by dropping my glass on the floor I went off back to the wharf.

I locked up agin, and 'ad another look at the dock. The water 'ad nearly gone and the mud was showing in patches. My mind went back to a sailorman wot had dropped 'is watch over-board two years before, and found it by walking about in the dock in 'is bare feet. He found it more easy because the glass broke when he trod on it.

The evening was a trifle chilly for June, but I've been used to roughing it all my life, especially when I was afloat, and I went into the office and began to take my clothes off. I took off everything but my pants, and I made

sure o' them by making braces for 'em out of a bit of string. Then I turned the gas low, and, arter slipping on my boots, went outside.

It was so cold that at fust I thought I'd give up the idea. The longer I stood on the edge looking at the mud the colder it looked, but at last I turned round and went slowly down the ladder. I waited a moment at the bottom, and was just going to step off when I remembered that I 'ad got my boots on, and I 'ad to go up agin and take 'em off.

I went down very slow the next time, and anybody who 'as been down an iron ladder with thin, cold rungs, in their bare feet, will know why, and I had just dipped my left foot in, when the wharf-bell rang.

I 'oped at fust that it was a runaway-ring, but it kept on, and the longer it kept on, the worse it got. I went up that ladder agin and called out that I was coming, and then I went into the office and just slipped on my coat and trousers and went to the gate.

"Wot d'you want?" I ses, opening the wicket three or four inches and looking out at a man wot was standing there.

"Are you old Bill?" he ses.

"I'm the watchman," I ses, sharp-like. "Wot d'you want?"

"Don't bite me!" he ses, purtending to draw back. "I ain't done no 'arm. I've come round about that glass you smashed at the Bear's Head."

"Glass!" I ses, 'ardly able to speak.

"Yes, glass," he ses—"thing wot yer drink out of. The landlord says it'll cost you a tanner, and 'e wants it now in case you pass away in your sleep. He couldn't come 'imself cos he's got nobody to mind the bar, so 'e sent me. Why! Halloa! Where's your boots? Ain't you afraid o' ketching cold?"

"You clear off," I ses, shouting at him. "D'ye 'ear me? Clear off while you're safe, and you tell the landlord that next time 'e insults me I'll smash every glass in 'is place and then sit 'im on top of 'cm! Tell 'im if 'e wants a tanner out o' me, to come round 'imself, and see wot he gets."

It was a silly thing to say, and I saw it arterwards, but I was in such a temper I 'ardly knew wot I was saying. I slammed the wicket in 'is face and turned the key and then I took off my clothes and went down that ladder agin.

It seemed colder than ever, and the mud when I got fairly into it was worse than I thought it could ha' been. It stuck to me like glue, and every step I took seemed colder than the one before. 'Owever, when I make up my mind to do a thing, I do it. I fixed my eyes on the place where I thought the purse was, and every time I felt anything under my foot I reached down and picked it up—and then chucked it away as far as I could so as not to pick it up agin. Dirty job it was, too, and in five minutes I was mud up to the neck, a'most. And I 'ad just got to wot I thought was the right place, and feeling about very careful, when the bell rang agin.

I thought I should ha' gorn out o' my mind. It was just a little tinkle at first, then another tinkle, but, as I stood there all in the dark and cold trying to make up my mind to take no notice of it, it began to ring like mad. I 'ad to go—I've known men climb over the gate afore now—and I didn't want to be caught in that dock.

The mud seemed stickier than ever, but I got out at last, and, arter scraping some of it off with a bit o' stick, I put on my coat and trousers and boots just as I was and went to the gate, with the bell going its 'ardest all the time.

When I opened the gate and see the landlord of the Bear's Head standing there I turned quite dizzy, and there was a noise in my ears like the roaring of the sea. I should think I stood there for a couple o' minutes without being able to say a word. I could think of 'em.

"Don't be frightened, Bill," ses the landlord. "I'm not going to eat you."

"He looks as if he's walking in 'is sleep," ses the fat policeman, wot was standing near by. "Don't startle 'im."

"He always looks like that," ses the landlord.

I stood looking at 'im. I could speak then, but I couldn't think of any words good enough; not with a policeman standing by with a notebook in 'is

pocket.

"Wot was you ringing my bell for?" I ses, at last.

"Why didn't you answer it before?" ses the landlord. "D'you think I've got nothing better to do than to stand ringing your bell for three- quarters of an hour? Some people would report you."

"I know my dooty," I ses; "there's no craft up to-night, and no reason for anybody to come to my bell. If I was to open the gate every time a parcel of overgrown boys rang my bell I should 'ave enough to do."

"Well, I'll overlook it this time, seeing as you're an old man and couldn't get another sleeping-in job," he ses, looking at the policeman for him to see 'ow clever 'e was. "Wot about that tanner? That's wot I've come for."

"You be off," I ses, starting to shut the wicket. "You won't get no tanner out of me."

"All right," he ses, "I shall stand here and go on ringing the bell till you pay up, that's all."

He gave it another tug, and the policeman instead of locking 'im up for it stood there laughing.

I gave 'im the tanner. It was no use standing there arguing over a tanner, with a purse of twelve quid waiting for me in the dock, but I told 'im wot people thought of 'im.

"Arf a second, watchman," ses the policeman, as I started to shut the wicket agin. "You didn't see anything of that pickpocket, did you?"

"I did not," I ses.

"Cos this gentleman thought he might 'ave come in here," ses the policeman.

"Ow could he 'ave come in here without me knowing it?" I ses, firing up.

"Easy," ses the landlord, "and stole your boots into the bargain"

"He might 'ave come when your back was turned," ses the policeman, "and if so, he might be 'iding there now. I wonder whether you'd mind me having a look round?"

"I tell you he ain't 'ere," I ses, very short, "but, to ease your mind, I'll 'ave a look round myself arter you've gorn."

The policeman shook his 'ead. "Well, o' course, I can't come in without your permission," he ses, with a little cough, "but I 'ave an idea, that if it was your guv'nor 'ere instead of you he'd ha' been on'y too pleased to do anything 'e could to help the law. I'll beg his pardon tomorrow for asking you, in case he might object."

That settled it. That's the police all over, and that's 'ow they get their way and do as they like. I could see 'im in my mind's eye talking to the guv'nor, and letting out little things about broken glasses and such-like by accident. I drew back to let 'im pass, and I was so upset that when that little rat of a landlord follered 'im I didn't say a word.

I stood and watched them poking and prying about the wharf as if it belonged to 'em, with the light from the policeman's lantern flashing about all over the place. I was shivering with cold and temper. The mud was drying on me.

"If you've finished 'unting for the pickpocket I'll let you out and get on with my work," I ses, drawing myself up.

"Good night," ses the policeman, moving off. "Good night, dear," ses the landlord. "Mind you tuck yourself up warm."

I lost my temper for the moment and afore I knew wot I was doing I 'ad got hold of him and was shoving 'im towards the gate as 'ard as I could shove. He pretty near got my coat off in the struggle, and next moment the police-man 'ad turned his lantern on me and they was both staring at me as if they couldn't believe their eyesight.

"He—he's turning black!" ses the landlord.

"He's turned black!" ses the policeman.

They both stood there looking at me with their mouths open, and then afore I knew wot he was up to, the policeman came close up to me and scratched my chest with his finger-nail.

"It's mud!" he ses.

"You keep your nails to yourself," I ses. "It's nothing to do with you." and I couldn't 'elp noticing the smell of it. Nobody could. And wot was worse than all was, that the tide 'ad turned and was creeping over the mud in the dock.

They got tired of it at last and came back to where I was and stood there shaking their 'eads at me.

"If he was on the wharf 'e must 'ave made his escape while you was in the Bear's Head," ses the policeman.

"He was in my place a long time," ses the landlord.

"Well, it's no use crying over spilt milk," ses the policeman. "Funny smell about 'ere, ain't there?" he ses, sniffing, and turning to the landlord. "Wot is it?"

"I dunno," ses the landlord. "I noticed it while we was talking to 'im at the gate. It seems to foller 'im about."

"I've smelt things I like better," ses the policeman, sniffing agin. "It's just like the foreshore when somebody 'as been stirring the mud up a bit."

"Unless it's a case of 'tempted suicide," he ses, looking at me very 'ard.

"Ah!" ses the landlord.

"There's no mud on 'is clothes," ses the policeman, looking me over with his lantern agin.

"He must 'ave gone in naked, but I should like to see 'is legs to make— All right! All right! Keep your 'air on."

"You look arter your own legs, then," I ses, very sharp, "and mind your own business."

"It is my business," he ses, turning to the landlord. "Was 'e strange in his manner at all when 'e was in your place to-night?"

"He smashed one o' my best glasses," ses the landlord.

"So he did," ses the policeman. "So he did. I'd forgot that. Do you know 'im well?"

"Not more than I can 'elp," ses the landlord. "He's been in my place a good bit, but I never knew of any reason why 'e should try and do away with 'imself. If he's been disappointed in love, he ain't told me anything about it."

I suppose that couple o' fools 'ud 'ave stood there talking about me all night if I'd ha' let 'em, but I had about enough of it.

"Look 'ere," I ses, "you're very clever, both of you, but you needn't worry your 'eads about me. I've just been having a mud-bath, that's all."

"A mud-bath!" ses both of 'em, squeaking like a couple o' silly parrots.

"For rheumatics," I ses. "I 'ad it some-thing cruel to-night, and I thought that p'r'aps the mud 'ud do it good. I read about it in the papers. There's places where you pay pounds and pounds for 'em, but, being a pore man, I 'ad to 'ave mine on the cheap."

The policeman stood there looking at me for a moment, and then 'e began to laugh till he couldn't stop 'imself.

"Love-a-duck!" he ses, at last, wiping his eyes. "I wish I'd seen it."

"Must ha' looked like a fat mermaid," ses the landlord, wagging his silly 'ead at me. "I can just see old Bill sitting in the mud a-combing his 'air and singing."

They 'ad some more talk o' that sort, just to show each other 'ow funny they was, but they went off at last, and I fastened up the gate and went into the office to clean myself up as well as I could. One comfort was they 'adn't got the least idea of wot I was arter, and I 'ad a fancy that the one as laughed last would be the one as got that twelve quid.

I was so tired that I slept nearly all day arter I 'ad got 'ome, and I 'ad no sooner got back to the wharf in the evening than I see that the landlord 'ad been busy. If there was one silly fool that asked me the best way of making mud-pies, I should think there was fifty. Little things please little minds, and the silly way some of 'em went on made me feel sorry for my sects.

By eight o'clock, 'owever, they 'ad all sheered off, and I got a broom and began to sweep up to 'elp pass the time away until low-water. On'y one craft 'ad come up that day—a ketch called the Peewit—and as she was berthed at the end of the jetty she wasn't in my way at all.

Her skipper came on to the wharf just afore ten. Fat, silly old man 'e was, named Fogg. Always talking about 'is 'ealth and taking medicine to do it good. He came up to me slow like, and, when 'e stopped and asked me about the rheumatics, the broom shook in my 'and.

"Look here," I ses, "if you want to be funny, go and be funny with them as likes it. I'm fair sick of it, so I give you warning."

"Funny?" he ses, staring at me with eyes like a cow. "Wot d'ye mean? There's nothing funny about rheumatics; I ought to know; I'm a martyr to it. Did you find as 'ow the mud did you any good?"

I looked at 'im hard, but 'e stood there looking at me with his fat baby-face, and I knew he didn't mean any harm; so I answered 'im perlite and wished 'im good night.

"I've 'ad pretty near everything a man can have," he ses, casting anchor on a empty box, "but I think the rheumatics was about the worst of 'em all. I even tried bees for it once."

"Bees!" I ses. "*Bees!*"

"Bee-stings," he ses. "A man told me that if I could on'y persuade a few bees to sting me, that 'ud cure me. I don't know what 'e meant by persuading! they didn't want no persuading. I took off my coat and shirt and went and rocked one of my neighbour's bee-hives next door, and I thought my last hour 'ad come."

He sat on that box and shivered at the memory of it.

"Now I take Dr. Pepper's pellets instead," he ses. "I've got a box in my state-room, and if you'd like to try 'em you're welcome."

He sat there talking about the complaints he had 'ad and wot he 'ad done for them till I thought I should never have got rid of 'im. He got up at last, though, and, arter telling me to always wear flannel next to my skin, climbed aboard and went below.

I knew the hands was aboard, and arter watching 'is cabin-skylight until the light was out, I went and undressed. Then I crept back on to the jetty, and arter listening by the Peewit to make sure that they was all asleep, I went back and climbed down the ladder.

It was colder than ever. The cold seemed to get into my bones, but I made up my mind to 'ave that twelve quid if I died for it. I trod round and round the place where I 'ad seen that purse chucked in until I was tired, and the rubbish I picked up by mistake you wouldn't believe.

I suppose I 'ad been in there arf an hour, and I was standing up with my teeth clenched to keep them from chattering, when I 'appened to look round and see something like a white ball coming down the ladder. My 'art seemed to stand still for a moment, and then it began to beat as though it would burst. The white thing came down lower and lower, and then all of a sudden it stood in the mud and said, "Ow!"

"Who is it?" I ses. "Who are you?" "Halloa, Bill!" it ses. "Ain't it perishing cold?"

It was the voice o' Cap'n Fogg, and if ever I wanted to kill a fellow-creetur, I wanted to then.

"Ave you been in long, Bill?" he ses. "About ten minutes," I ses, grinding my teeth.

"Is it doing you good?" he ses.

I didn't answer 'im.

"I was just going off to sleep," he ses, "when I felt a sort of hot pain in my left knee. O' course, I knew what it meant at once, and instead o' taking

some of the pellets I thought I'd try your remedy instead. It's a bit nippy, but I don't mind that if it does me good."

He laughed a silly sort o' laugh, and then I'm blest if 'e didn't sit down in that mud and waller in it. Then he'd get up and come for'ard two or three steps and sit down agin.

"Ain't you sitting down, Bill?" he ses, arter a time.

"No," I ses, "I'm not."

"I don't think you can expect to get the full benefit unless you do," he ses, coming up close to me and sitting down agin. "It's a bit of a shock at fust, but Halloa!"

"Wot's up?" I ses.

"Sitting on something hard," he ses. "I wish people 'ud be more careful."

He took a list to port and felt under the star-board side. Then he brought his 'and up and tried to wipe the mud off and see wot he 'ad got.

"Wot is it?" I ses, with a nasty sinking sort o' feeling inside me.

"I don't know," he ses, going on wiping. "It's soft outside and 'ard inside. It——"

"Let's 'ave a look at it," I ses, holding out my 'and.

"It's nothing," he ses, in a queer voice, getting up and steering for the ladder. "Bit of oyster-shell, I think."

He was up that ladder hand over fist, with me close behind 'im, and as soon as he 'ad got on to the wharf started to run to 'is ship.

"Good night, Bill," he ses, over 'is shoulder.

"Arf a moment." I ses, follering 'im.

"I must get aboard," he ses; "I believe I've got a chill," and afore I could stop 'im he 'ad jumped on and run down to 'is cabin.

I stood on the jetty for a minute or two, trembling all over with cold and temper. Then I saw he 'ad got a light in 'is cabin, and I crept aboard and peeped down the skylight. And I just 'ad time to see some sovereigns on the table, when he looked up and blew out the light.

\*\*\* END OF THE PROJECT GUTENBERG EBOOK DIRTY WORK \*\*\*

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

**START: FULL LICENSE**

## **THE FULL PROJECT GUTENBERG™ LICENSE**

**PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK**

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at [www.gutenberg.org/license](http://www.gutenberg.org/license).

### **Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works**

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at [www.gutenberg.org](http://www.gutenberg.org). If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website ([www.gutenberg.org](http://www.gutenberg.org)), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the

owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."

- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

#### 1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain "Defects," such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the "Right of Replacement or Refund" described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages,

costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

## **Section 2. Information about the Mission of Project Gutenberg**

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at [www.gutenberg.org](http://www.gutenberg.org).

## **Section 3. Information about the Project Gutenberg Literary Archive Foundation**

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at [www.gutenberg.org/contact](http://www.gutenberg.org/contact)

## **Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation**

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit [www.gutenberg.org/donate](http://www.gutenberg.org/donate).

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: [www.gutenberg.org/donate](http://www.gutenberg.org/donate).

## **Section 5. General Information About Project Gutenberg electronic works**

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility: [www.gutenberg.org](http://www.gutenberg.org).

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.